

26NWCV00512 26NWCV00512

County: los-angeles

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Case Number: 26NWCV00512 Hearing Date: September 1, 2026 Dept: D

CREDITORS ADJUSTMENT

BUREAU, INC. v. JOSE GILBERTO GARDEA, et al.

CASE NO.: 26NWCV00512

HEARING: 09/01/2026 @ 9:30 a.m.

#11

TENTATIVE ORDER

Defendant Jose Gilberto Gardea's Motion to Set Aside

Default and Strike Request for Default Judgment is DENIED pursuant to Code of Civil Procedure section 473 subdivision (b).

Moving party(s) to give notice.

Defendant Jose Gilberto Gardea

moves to set aside the default entered against him on April 24, 2026, strike Plaintiff's Request for Entry of Default Judgment filed on May 22, 2026 and grant him leave to file the Proposed Answer attached to as Exhibit A to his declaration. Defendant moves for relief pursuant to Code of Civil Procedure section 473 subdivision (b).

Background

Plaintiff Creditors Adjustment

Bureau, Inc. is suing as assignee of State Compensation Insurance Fund

("Fund"). Fund provided worker's compensation insurance to Defendant Jose Gilberto Gardea aka Jose G Gardena aka Jose Calbilla aka Jose Gardea dba Premium Welding ("Defendant") under Policy No. 93222708-24. Plaintiff alleges Defendant is in default on policy premiums in the amount of \$63,443.37 for the policy period of August 12, 2023 through August 12, 2024 and \$8,395.05 for the policy period of August 12, 2024 through August 12, 2025.

On February 11, 2025, Plaintiff filed a complaint against Defendant alleging (1) breach of contract and (2) breach of contract.

On March 19, 2026, Plaintiff personally served Defendant with the complaint and summons.

On April 24, 2026, default was entered against Defendant. On May 22, 2026, Plaintiff filed a CIV-100 Form requesting entry of court judgment.

On June 10, 2026, Defendant filed a motion to set aside the default. On August 18, 2026, Plaintiff filed an opposition. On August 25, 2026, Defendant filed a reply.

Legal Standard

Code of Civil Procedure section 473(b) provides, in relevant part: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. (Code of Civ. Proc., § 473, subd. (b).)"

"When the party in default moves promptly for relief, and the party opposing the motion will not suffer prejudice if relief is granted, very slight evidence is necessary to have a

default set aside.” (Shapell Social Rental Properties, LLC v. Chico's FAS, Inc. (2022) 85 Cal.App.5th 198, 218.) Only a weak showing is necessary and any doubts must be resolved in favor of granting the defendant relief. (Id.) “Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 981.)

“The term ‘surprise,’ as used in section 473, refers to some condition or situation in which a party is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against.” (State Farm Fire & Casualty Co. v. Pietak (2001) 90 Cal.App.4th 600, 611 (defendant could not claim that he was surprised by dismissal when he received a copy of plaintiff’s transmittal letter requesting that the enclosed dismissal be filed as soon as funds were distributed).) “Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 981.)

Analysis

Defendant requests relief from default based on mistake. Defendant claims he was unrepresented at the time he was served and did not understand that failure to respond would result in default. (J. Gardea Dec., ¶8.) Defendant also claims he “did not appreciate the legal significance of the response deadline.” (J. Gardea Dec., ¶10.) Defendant claims English is not his primary language and he was focused on operating his business. (Id. at ¶¶2 and 10.) Defendant did not learn of his default until April 30, 2026. (Id. at ¶12.)

In response, Plaintiff argues Defendant’s evidence establishes inexcusable neglect at best. Plaintiff argues the summons is in English and Spanish and it states in bold that the defendant must respond to the complaint within 30 days or potentially lose the case by default. Plaintiff argues Defendant has unclean hands because he failed to pay for worker’s compensation coverage and ignored all attempts to contact him to collect the debt. Plaintiff also argues Defendant unreasonably delayed in seeking relief.

On reply, Defendant argues California law favors trial on the merits and relief from default is liberally

granted, particularly where no default judgment has been entered. Defendant argues he was unrepresented, had limited proficiency with English, had no experience with litigation and misunderstood the procedural significance of the failure to answer. Defendant argues evidence of his pre-litigation conduct is irrelevant and does not establish a knowing and deliberate decision to default.

Defendant does not dispute that he was properly served with the complaint and summons. Defendant's claim that he lacked proficiency in English does not address the fact that the summons is in both English and Spanish. Defendant does not address the significance of the Spanish translation and whether he reads and understands Spanish.

Defendant's claim that he was focusing on his business does not establish reasonable mistake or excusable neglect. "'Press of business' alone generally does not constitute grounds for relief." (Huh v. Wang (2007) 158 Cal.App.4th 1406, 1424.)

Defendant was not represented at the time he received the complaint and summons. Individual litigants are often unrepresented at the time they are served with a complaint and summons. Defendants ordinarily retain counsel in response to a complaint and summons. Defendant's unrepresented status alone does not establish a reasonable mistake.

Defendant also claims he was unfamiliar with the litigation process. However, the summons stated in bold print that he had to respond to the complaint within 30 days or face losing the case by default. Whatever information he needed to know to avoid default was set forth in the summons.

Defendant relies entirely on the principle that the law favors resolution of cases on their merits. However, if this principle alone were sufficient, section 473(b) would not condition relief from default on a showing of excusable neglect or reasonable mistake. The Legislature would instead have drafted section 473(b) to allow for relief without such a showing. "There is, to be sure, a policy in favor of trying cases on their merits. And it is an important one. But there are other policies reflected in the requirement of section

473(b) that relief be granted only where a party has made an honest and reasonable mistake, policies implicating judicial efficiency, a fair legal process and timely access to the courts. If relief from default were required in a case like this, no case would merit denial of relief and the Legislature might as well make such relief mandatory in all circumstances. The Legislature has not chosen that path and for good reason.”

(McClain v. Kissler (2019) 39 Cal.App.5th 399, 405.)

Defendant fails to establish that the default was entered as a result of his excusable neglect or a reasonable mistake. Defendant's motion to set aside default is denied.

Conclusion

Defendant Jose Gilberto Gardea's Motion to Set Aside Default and Strike Request for Default Judgment is DENIED pursuant to Code of Civil Procedure section 473 subdivision (b).